HEADNOTE

> *"1. The legal interest required for the admissibility of intervener support exists when the intervener has a direct and present interest in the grant of the order or decision requested by the supported party.*
> *2. Such legal interest can in any case be affirmed when it is asserted that the product purchased by the intervener infringes the patent in suit.*
> *3. While Article 69(4) EPC merely provides for the provision of security for costs by the claimant, Rule 158 of the Rules of Procedure extends the circle of addressees of such an order to "the parties" and thus also to an intervener, if she is admitted."*

COURT
Local Division in Vienna

PROCEEDINGS
Procedural order

PATENT
EP 2 643 717 B1
COLOR-MIXING CONVERGENT OPTICAL SYSTEM

KEYWORDS
Legal aid
Security for costs of proceedings

Rule 158 Security for costs of a party

SUMMARY
The Local Division in Vienna issued a procedural order. The patent at issue relates to a color-mixing convergent optical system. According to the headnotes of the decision, an intervener must show direct and present interest in the supported party's request. This interest must concern the order or decision being sought. Such interest clearly exists when the intervener claims that a purchased product infringes the patent in suit. Furthermore, the EPC requires only the claimant to provide security for costs. However, the Rules of Procedure extend this obligation more broadly. All parties, including admitted interveners, may be required to provide such security.